

SUPREME COURT OF VICTORIA

KIDD v. REEVES

MENHENNITT, J.

2, 3 March 1972

Motor car—Information for driving during period when licence suspended—Honest and reasonable belief that driver not disqualified—Whether a defence—Onus of proof—*Motor Car Act 1958* (No. 6325), s. 28 (1).

Section 28 (1) of the *Motor Car Act 1958* provides that any person who drives a motor car during the period of any suspension of his licence to drive a motor car or after his licence has been cancelled or during any period of disqualification from obtaining a licence shall be guilty of an offence.

Held: an honest and reasonable belief in a state of facts which, if they existed, would make the defendant's act innocent affords an excuse for doing what would otherwise be an offence under the section. In the first instance, it is for the defendant to make it appear from the evidence that he had reasonable grounds for believing that he was at the time of the alleged offence licensed to drive a motor car and that on those reasonable grounds he believed he was so licensed. Once he has satisfied this evidentiary onus the ultimate legal burden of proof then shifts. In a case of doubt, the ultimate burden is then on the prosecution to satisfy the court that the defendant did not at the time of the alleged offence honestly and reasonably believe that he was licensed to drive a motor car.

Proudman v. Dayman (1941), 67 C.L.R. 536; [1944] A.L.R. 64; *Lim Chin Aik v. R.*, [1963] A.C. 160; [1963] 1 All E.R. 223, and *Sweet v. Parsley*, [1970] A.C. 132; [1969] 1 All E.R. 347, applied.

McDonald v. Cidoni (unreported, 2 February 1968, Newton, J.), followed.

Order to Review

The facts appear sufficiently in the headnote and judgment, *infra*.

A. R. Castan, for the informant, to move the order absolute.

F. Y. Costigan, for the defendant to show cause.

Cur. adv. vult.

Menhennitt, J.: This is the return of an order nisi made by Master Bergere on the 24 June 1971 to review a decision of the Magistrates' Court at Warragul on 21 May 1971, whereby it was ordered that the information of the informant, Keith Kidd, that the defendant, Michael John Reeves, on 1 May 1971 at Ellinbank in the State of Victoria did drive a motor car during a period of suspension of his licence be dismissed.

The evidence before the magistrate established that on Friday, 23 April 1971, the defendant at Warragul was convicted of the offence that he did make a U-turn without a signal, that he was convicted and fined \$50 in default distress and that his licence was suspended for two months. The evidence also established that on 1 May 1971 the defendant did in fact drive a motor car. The 1 May was some eight days after the date on which the defendant's licence had been suspended.

On the hearing of the information the informant gave evidence and was cross-examined by the solicitor for the defendant, who appeared and pleaded not guilty, and evidence was also given by First Constable Peacock, who was also cross-examined by the solicitor for the defendant, and

the defendant, being called by his own solicitor, gave evidence on oath and was cross-examined by the informant and was also asked questions by the magistrate.

During the course of an address by the solicitor for the defendant at the conclusion of the evidence the magistrate said that he had recently received a case from the chief stipendiary magistrate in regard to this very charge and cited the case of *McDonald v. Cidoni*, an unreported decision of his Honour Newton, J., given 2 February 1968.

There is before me an affidavit sworn by the informant and also an affidavit in reply sworn by the defendant's solicitor who appeared for him on the hearing. There are conflicts in those affidavits as to what occurred, and in accordance with the well-established rule, in so far as there is conflict I accept the account given on behalf of the defendant by the defendant's solicitor in his answering affidavit.

On that basis the magistrate continued after he had referred to the decision of Newton, J., in *McDonald v. Cidoni* as follows: The magistrate commented that the case is an authority for the proposition that if the defendant at the time in question honestly believed on reasonable grounds that his licence had not been cancelled, then this would be a good defence. The magistrate also stated that that case—that is the decision of Newton, J.—was authority for the proposition that where the offence in respect of which the licence was suspended was not an offence which necessarily or ordinarily carried suspension and where the defendant had absolutely no knowledge of the suspension, that in driving whilst believing he had a licence he made a mistake of fact within the ambit of the principle of *Proudman v. Dayman* (1941), 67 C.L.R. 536; [1944] A.L.R. 64. The magistrate further said that he was quite satisfied the defendant had not any knowledge of the suspension.

The grounds in the order *nisi* go to the correctness of the law as stated by the magistrate and whether or not it was open to the magistrate to make the findings of fact that he did. In this situation it is necessary for me, in the first instance, to decide the meaning, operation and effect of the relevant section, s. 28 (1) of the *Motor Car Act* 1958, which is in the following terms: "Any person who drives a motor car during the period of any suspension of his licence to drive a motor car or after his licence has been cancelled or during any period of disqualification from obtaining a licence shall be guilty of an offence . . .".

In the unreported decision of *McDonald v. Cidoni* (to which I have referred) his Honour Newton, J., decided that the word "knowingly" was not to be read into that section, but also decided that the well-known principle stated by Dixon, J., in *Proudman v. Dayman* relating to the existence of an honest and reasonable belief on the part of the defendant of facts which, if true, would exculpate him did have application to the section.

Before me submissions have included submissions as to the proper interpretation of the section and the elements involved in the offence and questions of onus have also been argued and in these circumstances it is necessary for me to decide these matters before I proceed to examine the contentions that are advanced on behalf of the informant who obtained the order *nisi* to review. I, accordingly, turn to the authorities which deal with the principles applicable to legislation of this kind and in particular to decisions which are clearly binding upon me or which state the effect of decisions which are binding upon me.

In the case of *Proudman v. Dayman* (1941), 67 C.L.R. 536; [1944] A.L.R. 64, Dixon, J., in his well-known and frequently referred to and relied upon judgment said at (C.L.R.) p. 540, in relation to a case where

the legislation concerned a charge of permitting an unlicensed person to drive a motor car, the following: "It is one thing to deny that a necessary ingredient of the offence is positive knowledge of the fact that the driver holds no subsisting licence. It is another to say that an honest belief
 5 founded on reasonable grounds that he is licensed cannot exculpate a person who permits him to drive. As a general rule an honest and reasonable belief in a state of facts which, if they existed, would make the defendant's act innocent affords an excuse for doing what would otherwise be an offence."

10 A little later on the same page his Honour said: "There may be no longer any presumption that *mens rea*, in the sense of a specific state of mind, whether of motive, intention, knowledge or advertence, is an ingredient in an offence created by a modern statute; but to concede that
 15 the weakening of the older understanding of the rule of interpretation has left us with no *prima facie* presumption that some mental element is implied in the definition of any new statutory offence does not mean that the rule that honest and reasonable mistake is *prima facie* admissible as an exculpation has lost its application also."

20 "Doubtless over a wide description of legislation the presumption in favour of its application is but a weak one: see *Maier v. Musson* (1934), 52 C.L.R. 100; [1935] A.L.R. 80; *Thomas v. R.* (1937), 59 C.L.R. 279; [1938] A.L.R. 37, and three papers referred to in that report (1937), 59 C.L.R., at p. 305. But it still remains a presumption, and in relation
 25 to s. 30 there appears to be no sufficient reason for treating it as rebutted."

"The burden of establishing honest and reasonable mistake is in the first place upon the defendant and he must make it appear that he had reasonable grounds for believing in the existence of a state of facts,
 30 which, if true, would take his act outside the operation of the enactment and that on those grounds he did so believe. The burden possibly may not finally rest upon him of satisfying the tribunal in case of doubt."

I understand those passages to mean that whilst in the first instance it is for the defendant to make it appear that he had an honest and reasonable
 35 belief in a state of facts which, if true, would exculpate him, and that in this sense the matter is one to be raised by way of defence, none the less the onus that is on the defendant is an evidentiary onus only, and once he has discharged this evidentiary onus the ultimate legal onus is on the prosecution, in a case of doubt, to satisfy the court that
 40 the defendant did not honestly and reasonably believe a set of facts which, if true, would exculpate the defendant."

In *Lim Chin Aik v. R.*, [1963] A.C. 160; [1963] 1 All E.R. 223, the Privy Council stated the law in a passage which appears in the (A.C.)
 45 headnote as follows: "*Held*, that there is a presumption that *mens rea* or knowledge of the wrongfulness of the act is an essential ingredient of every offence, but that presumption is liable to be displaced either by the words of the statute creating the offence or by the subject-matter with which it deals and both must be considered."

In the course of their Lordships' judgment, which was delivered by Lord Evershed, his Lordship said that the Privy Council accept as correct the formulation they cited from the judgment of Wright, J., in *Sherras v. De Rutzen*, [1895] 1 Q.B. 918, at 921; [1895-9] All E.R. Rep. 1167 (A.C.
 50 at p. 173). Their Lordships had quoted the passage which is identical with the passage in the headnote which I have cited."

In *Sweet v. Parsley*, [1970] A.C. 132; [1969] 1 All E.R. 347, the House of Lords dealt with the whole of the doctrine of *mens rea* and a majority of their Lordships subscribed to the view which is expressed in the (A.C.)

headnote as follows: "*Mens rea* is an essential ingredient of every offence unless some reason can be found for holding that it is not necessary, and the court ought not to hold that an offence is an absolute offence unless it appears that that must have been the intention of Parliament."

In the course of his speech Lord Diplock examined the application of the doctrine of *mens rea* which he considered was the prevailing view in Australia and his Lordship's examination of the Australian authorities led him to the conclusion that that doctrine was the one enunciated by a majority of the court in *R. v. Tolson* (1889), 23 Q.B.D. 168; [1886-90] All E.R. Rep. 26, and the one enunciated by Dixon, J., in *Proudman v. Dayman* (to which I have referred). The passages of his Lordship's speech are at (Q.B.D.) pp. 163, 164 as follows:—

At p. 163 his Lordship said: "But the importance of the actual decision of the nine judges who constituted the majority in *R. v. Tolson*, which concerned a charge of bigamy under s. 57 of the *Offences Against the Person Act*, 1861, was that it laid down as a general principle of construction of any enactment, which creates a criminal offence, that, even where the words used to describe the prohibited conduct would not in any other context connote the necessity for any particular mental element, they are nevertheless to be read as subject to the implication that a necessary element in the offence is the absence of a belief, held honestly and upon reasonable grounds, in the existence of facts which, if true, would make the act innocent. As was said by the Privy Council in *Bank of New South Wales v. Piper*. [1897] A.C. 383, 389, 390, the absence of *mens rea* really consists in such a belief by the accused."

And near the foot of p. 164 his Lordship said: "This, as I understand it, is the approach of Dixon, J., to the onus of proof of honest and reasonable mistaken belief as he expressed it in *Proudman v. Dayman* (1941), 67 C.L.R. 536, 541; [1944] A.L.R. 64. Unlike the position where a statute expressly places the onus of proving lack of guilty knowledge on the accused, the accused does not have to prove the existence of a mistaken belief on the balance of probabilities; he has to raise a reasonable doubt as to its non-existence." His Lordship there, in my respectful view, states succinctly the position as to shifting onus which I have previously enunciated.

In the light of the authorities to which I have referred I return to the language of s. 28 (1) of the *Motor Car Act* 1958. Having regard to the language of the section, which I have read, and the nature of the offence involved, and in the light of the statement by Dixon, J., in *Proudman v. Dayman* that there may be no longer any presumption that *mens rea*, in the sense of a specific state of mind, whether of motive, intention, knowledge or advertence, is an ingredient in an offence created by a modern statute, I respectfully agree with the decision of Newton, J., in *McDonald v. Cidoni* that the word "knowingly" is not to be read into s. 28 (1), and indeed, there was no submission to the contrary for the defendant before me on the present order to review.

On the other hand, however, it appears to me that the authorities to which I have referred lead to the conclusion, which Newton, J., also reached in *McDonald v. Cidoni*, that the other element, referred to by Dixon, J., in *Proudman v. Dayman*, does apply to s. 28 (1), namely, that an honest and reasonable belief in a state of facts which, if they existed, would make the defendant's act innocent, affords an excuse for doing what would otherwise be an offence.

Having regard to what this means in terms of evidentiary onus and ultimate legal onus, the operation and effect of s. 28 (1) are, in my view, as follows:—

5 In the first instance, it is for the defendant to make it appear from the evidence that he had reasonable grounds for believing that he was at the time of the alleged offence licensed to drive a motor car and that on those reasonable grounds he believed he was so licensed. Once he has
10 satisfied this evidentiary onus the ultimate legal burden of proof then shifts. In a case of doubt, the ultimate burden is then on the prosecution to satisfy the court that the defendant did not at the time of the alleged offence honestly and reasonably believe that he was licensed to drive a motor car.

10 With that statement of the law I turn to the magistrate's findings and decision. For the prosecution it has been submitted that the magistrate did not make the necessary findings to bring the case within the principles I have stated and, alternatively, that if he did, it was not reasonably
15 open to him to make those findings. I turn, accordingly, to what the magistrate found. In my view, the magistrate found positively that at the time of the alleged offence, namely, on 1 May 1971, the defendant believed that he was licensed to drive a motor car. In the course of his reasons, to which I have referred, the magistrate used the phrase "and
20 where the defendant had absolutely no knowledge of the suspension, that in driving whilst believing he had a licence he made a mistake of fact within the ambit of the principle of *Proudman v. Dayman*". The magistrate further said that he was quite satisfied that the defendant had not any knowledge of the suspension. Those, I conclude, are positive
25 findings that the defendant believed that at the time of the alleged offence he was licensed to drive a motor car.

It is convenient to turn immediately to the other aspect of that finding, namely, whether it was reasonably open to the magistrate so to find.

30 The function of this Court on an order to review is clear and was stated, among other places, by the Full Court in *Taylor v. Armour & Co. Pty. Ltd.*, [1962] V.R. 346, at p. 351, when the Full Court said: "This Court has merely to see whether there was evidence upon which the magistrate might, as a reasonable man, come to the conclusion to which he
35 did come."

In my view there was ample evidence upon which the magistrate, as a reasonable magistrate, might come to the conclusion, which he did, that the defendant at the time of the alleged offence believed he was licensed to drive a motor car. The defendant so swore on oath. He swore that he
40 was unaware that his licence had been cancelled. The magistrate himself asked him: "Are you quite sure that up to the time of the interview . . ." —that is the police interview— ". . . you had no idea that your licence had been suspended?" The police interview was after the driving. The defendant replied: "Yes." The magistrate then asked: "Quite sure?" The defendant again replied: "Yes." The magistrate saw the witnesses and saw
45 their demeanour and heard them cross-examined, and questions of credibility, of course, are entirely for him. But there was, accordingly, ample evidence upon which a reasonable magistrate might conclude that the defendant at the time of the alleged offence believed that he was still
50 licensed. Accordingly, in this case, on that aspect, the defendant did more than discharge the onus which was upon him; not merely did he discharge the evidentiary onus, he positively satisfied the magistrate that he had that belief. As I have said, it was for the Crown ultimately to satisfy the court that he did not have such a belief. But on the contrary, the defendant satisfied the court that he had such a belief and it was reasonably open to the magistrate so to find. The other element is whether the magistrate found, and whether it was reasonably open to him to find, that that belief

was based upon reasonable grounds. The magistrate makes no explicit finding on this matter, but having regard to his citation from the decision of Newton, J., in *McDonald v. Cidoni*, it is quite clear that his mind adverted to the question of reasonableness of belief, that is that the belief was on reasonable grounds, and I have no doubt that his finding included by implication a finding that the belief of the defendant was on reasonable grounds.

The main attack on behalf of the informant goes to the next element, and that is as to whether it was reasonably open to the magistrate to make that finding.

Once again, the passage which I have stated from *Taylor v. Armour & Co. Pty. Ltd.* is applicable. The issue before me is not for me to decide what, on all the evidence, I would conclude as to whether or not the defendant had reasonable grounds for his belief. The issue before me is whether it was reasonably open to a reasonable magistrate to conclude, on all the evidence, that there were reasonable grounds for the belief of the defendant that at the time of the alleged offence he was licensed to drive a motor car.

A number of matters were relied upon by counsel for the informant to urge me to reach the conclusion that no reasonable magistrate could so reasonably conclude on the evidence. In the first place, reliance was placed on the fact that the defendant admitted that he knew the case was listed for hearing on 23 April 1971, that he did not attend the court, and that he did not make any inquiry after the proceedings. However, the defendant gave evidence on oath, which the magistrate was entitled to accept, which took the form of this answer to this question: Question (from his own solicitor): "What penalty did you expect to incur?"—A.: "A fine, but certainly not a suspension."

Having regard to the nature of the original offence with which the defendant was charged, namely, making a U-turn without a signal, that certainly seems to me not to be a surprising view; on the contrary, it seems to me to be an understandable view, and it certainly, in my view, would be open to a reasonable magistrate to conclude that there would be no occasion for the defendant to inquire after the hearing as to whether or not his licence had been cancelled or suspended, having regard to his statement that he certainly expected that there would not be a suspension.

Next, reliance was placed upon the fact that when the defendant was interviewed by the police on 1 May, after he had in fact driven the car, he at first denied that he had driven it and then conceded that he had. When asked about this when he was giving evidence on oath, the defendant said this: "I had worked until 3 a.m. that morning and did not get to bed until 4 a.m. When the police called I was only half awake and tired and was unaware of what I was saying. My reason for telling the police that I hadn't driven the car was not that I knew my licence had been cancelled." It is not for me to form my own independent judgment about whether that statement should or should not be accepted. The magistrate saw the defendant in the witness-box and it is implicit from his findings and the dismissal of the proceedings that he accepted that explanation. This point is one that goes not, in my view, to questions of reasonableness of belief, but questions of credibility of the witness, and not only, in my view, was it open to the magistrate to accept the explanation that the defendant gave, but the point is, in any event, irrelevant to the question of reasonableness of belief.

In the third place, it was said that on the occasion of 23 April a person working with the defendant in the railways was also before the court and convicted of a driving offence and had his licence cancelled for two years.

5 The defendant was asked in cross-examination whether he knew of that
fact and the defendant's answer was: "Yes, I know now." There was no
evidence that the defendant on the occasion on which he was driving, on
1 May 1971, knew that Jinnette was before the court on 23 April 1971
or knew that Jinnette's licence was cancelled. The submission for the
informant was that it was unreasonable for the defendant not to have
made inquiries from Jinnette as to what happened in the defendant's own
case on 23 April. This submission fails at the outset because it has not
10 been established that at the time the defendant was interviewed by the
police after the alleged driving offence he even knew that Jinnette was
before the court. Even if he had known that, questions arise as to whether
in relation to traffic offences it is common knowledge that people may
perhaps wait outside a court until their case is called and not be present
15 when other cases are heard and whether it would be a failure to act
reasonably to fail to ask another person who was before the court on the
same day what happened in your own case. However, both because of the
absence of any proof that the defendant knew that Jinnette was before
the court that day and because of the other considerations I have
20 mentioned, it was, in my view, open to the magistrate reasonably to
conclude that these matters did not amount to unreasonable conduct so as
to make the belief of the defendant not reasonably founded.

Nothing has been advanced on behalf of the informant which in my
view leads to the conclusion that it was not reasonably open to the
25 magistrate as a reasonable magistrate to conclude that there were reason-
able grounds for the defendant's belief that he was licensed at the time of
the alleged offence on 1 May 1971. Once again, the defendant has dis-
charged more than the onus upon him. He has positively, in my view,
satisfied the court that there were reasonable grounds for the belief he
30 held, and there is nothing to show that it was not reasonably open to the
magistrate to reach that conclusion. Once again, the onus was on the
informant, in the circumstances, to satisfy the court that there were no
reasonable grounds upon which the defendant could hold that belief, and,
not only did the informant fail so to satisfy the court, but he also failed
35 to show that there were no reasonable grounds for the holding of that
belief.

For all of the reasons I have given, my conclusion is that the grounds
of the order *nisi*, which I have treated in a much more liberal and general
40 way than the specific way in which they have been enunciated, have not
been made out. Accordingly, the order *nisi* will be discharged. It is
ordered that the informant pay the defendant's taxed costs of the order
to review up to an amount of \$200.

Order nisi discharged.

45 Solicitor for the informant: *John Downey*, Crown Solicitor.

Solicitors for the defendant: *Kevin Davine & Sons*, by their agents
50 *Cole & O'Heare*.

MAURICE GURVICH
BARRISTER-AT-LAW